



CHAPTER xxxi.

An Act to incorporate a Joint Committee of the Metropolitan District Railway Company and the London Electric Railway Company and to empower it to purchase the generating station of the Underground Electric Railways Company of London Limited at Lots Road Chelsea and to raise money therefor and to lease the same to the Metropolitan District Railway Company and the London Electric Railway Company and to authorise the Metropolitan District Railway Company to construct new railways and for other purposes.

A.D. 1911.

[2nd June 1911.]

WHEREAS the Metropolitan District Railway Company and the London Electric Railway Company (hereinafter respectively referred to as "the District Company" and "the London Company" and collectively as "the Two Companies") under the powers of their special Acts work the traffic of their respective railways by electrical power and use electrical energy for other purposes on their respective undertakings and take the electrical energy required therefor from the generating station of the Underground Electric Railways Company of London Limited (hereinafter called "the Underground Company") at Lots Road Chelsea :

And whereas the payments for the supply of electrical energy so furnished to the District Company are a working expense of the District Company ranking in priority to the interest on its debenture stocks but without prejudicing or affecting the rights attached to the rentcharge stocks of the District Company or the rights attached to its respective debenture stocks in respect of rents and profits and proceeds of sale of surplus lands and

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A.D. 1911. premises of the District Company and the payments for the supply of electrical energy so furnished to the London Company are a working expense of that company ranking in priority to the interest on its debenture stock but subject to the existing rentcharges of the London Company :

And whereas it is expedient that a Joint Committee of the Two Companies should be constituted and should be authorised to acquire from the Underground Company and should have vested in it the said generating station undertaking of that company as hereinafter defined and that the Joint Committee should lease the same to the Two Companies at the rent and on the terms hereinafter mentioned and that the powers in this Act contained should be conferred upon the Two Companies in relation to the said generating station undertaking and the generation and supply of electrical energy thereon and therefrom :

And whereas it is expedient that one moiety of the rent to be reserved by the said lease should form and be a working expense of the District Company payable out of the revenues of that company in priority to the interest on its present and future debenture stocks but not prejudicing or affecting its existing rentcharge stocks or the rights attached to its respective debenture stocks in respect of rents and profits and proceeds of sale of surplus lands and premises of the District Company and that the other moiety of the said rent should form and be a like working expense of the London Company but not prejudicing or affecting the rights attached to its existing rentcharges :

And whereas it is expedient that the District Company should be authorised to construct the railways and works in this Act mentioned and to acquire by compulsion or agreement for the purposes of this Act and for the general purposes of its undertaking the lands hereinafter described in the county of London :

And whereas it is expedient that the other powers in this Act mentioned should be conferred upon the District Company :

And whereas plans and sections showing the lines and levels of the railways by this Act authorised and plans showing the lands which may be taken under the powers of this Act and also books of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of

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the peace for the county of London and are hereinafter referred to as the deposited plans sections and books of reference: A.D. 1911.

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1. This Act may be cited as the Metropolitan District Railway Act 1911. Short title.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Generating Station.

Part III.—New Railways.

Part IV.—Miscellaneous.

Division of
Act into
Parts.

3. Sections 9 to 13 of the Companies Clauses Consolidation Act 1845 and also the clauses and provisions of that Act with respect to the following matters (that is to say):— Incorporation of Acts.

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested; and

Part I. (relating to cancellation and surrender of shares) of the Companies Clauses Act 1863 as amended by subsequent Acts are (subject to the provisions of and so far as applicable to and as varied by this Act) incorporated with and form part of this Act and such sections clauses provisions and part of Acts shall for the purposes of Part II. of this Act be read as if the name of the Joint Committee by this Act constituted were inserted therein in the place of the company and the stock by this Act

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A.D. 1911. authorised to be created and issued by the Joint Committee were therein referred to in the place of shares in the company or undertaking.

The Lands Clauses Acts the Railways Clauses Consolidation Act 1845 and Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 are for the purposes of Part III. of this Act (subject to the provisions of and so far as applicable to and as varied by this Act) incorporated with and form part of this Act.

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

“The District Company” means the Metropolitan District Railway Company:

“The London Company” means the London Electric Railway Company:

“The Two Companies” means the District Company and the London Company:

“The Underground Company” means the Underground Electric Railways Company of London Limited:

“The Companies” means for the purposes of Part II. of this Act the Two Companies and the Underground Company:

“The trustees for the bondholders of the Underground Company” means the trustees for the time being of the trust deed dated the 31st day of July 1908 and made between the Underground Company of the one part and the London and Westminster Bank Limited of the other part securing the existing issues of prior lien bonds $4\frac{1}{2}$ per centum bonds of 1933 and 6 per centum income bonds of the Underground Company:

“The trustees for the debenture holders of the Underground Company” means the trustees for the time being of the trust deed dated the 12th day of August 1909 and made between the Underground Company of the one part and John Trotter Henry Cockburn and James

Arthur Dawes of the other part securing the existing ^{A.D. 1911.}
issue of first power house debentures of the Underground
Company :

“The Joint Committee” means the Lots Road Power
House Joint Committee by this Act constituted and
incorporated :

“The generating station undertaking” means and includes—

(A) The generating station at Lots Road Chelsea
now belonging to the Underground Company together
with the site thereof and all land buildings works
and conveniences appertaining thereto or belonging
to or held by the Underground Company in connection
therewith and all boilers turbines generators plant
machinery tools apparatus appliances and chattels
whether the same be fixed or loose thereon or thereat
other than coal oil and consumable stores ;

(B) The cable subway extending from such gene-
rating station to the railway of the District Company
near Earls Court Station and the site thereof and
wayleaves therefor and all cables mains conduits
wires apparatus appliances and instruments thereon
or therein ;

(c) All statutory rights and powers conferred on
the District Company the London Company and the
Underground Company or any of them in connection
with the generation of electrical energy at the said
generating station or the transmission of electrical
energy therefrom through the said cable subway and
the benefit of all agreements made by the District
Company the London Company and the Underground
Company or any of them in relation thereto other
than (1) agreements with the staff employed by the
Underground Company in connection with the gene-
rating station undertaking (2) current contracts for
coal oil and other consumable stores and (3) such
agreements as are by this Act cancelled and deter-
mined :

“The generating station at Lots Road Chelsea” means and
includes the existing generating station at Lots Road
Chelsea and any extensions that may be made thereto :

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“The depreciation fund” means the fund established for meeting depreciation repairs and renewals of the said generating station cable subway and cables and the investments representing the said fund :

“Half year” means a half year ending on a 30th day of June or 31st day of December :

“Power house stock” means the stock created pursuant to the section of this Act of which the marginal note is “Power to Joint Committee to create and issue stock” and for the time being issued and outstanding :

“Land” for the purposes of Parts I. and II. of this Act includes leasehold interests in land and also everything which “land” is defined by section 2 of the Conveyancing and Law of Property Act 1881 to include for the purposes of that Act and also everything which under section 6 subsections (1) and (2) of the said Act is deemed to be included in conveyances of land or of land having houses or buildings thereon made after the commencement of the said Act in default of a contrary intention expressed in such conveyances :

“The date of transfer” means the date to be fixed by certificate under the respective common seals of the Underground Company and the Joint Committee as hereinafter provided :

“The Act of 1897” means the Metropolitan District Railway Act 1897 :

“The Act of 1900” means the Metropolitan District Railway Act 1900 :

“The Act of 1901” means the Metropolitan District Railway Act 1901 :

“The Act of 1902” means the Metropolitan District Railway Act 1902 :

“The Act of 1903” means the Metropolitan District Railway Act 1903 :

“The Act of 1906” means the Metropolitan District Railway Act 1906 :

“The Act of 1908” means the Metropolitan District Railway Act 1908 :

“The Act of 1910” means the Metropolitan District Railway A.D. 1911,
Act 1910:

The expressions “parish clerks” and “clerks of the several parishes” in sections 7 8 and 9 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of metropolitan boroughs.

PART II.

GENERATING STATION.

5. For the purposes of this Part of this Act there shall be a Joint Committee to be constituted as provided by this Act representing the District Company and the London Company respectively and a standing arbitrator to be appointed as hereinafter provided.

Joint Committee and standing arbitrator.

6. The Joint Committee shall be called “The Lots Road Power House Joint Committee” and by that name the members for the time being of the Joint Committee shall be one body corporate and shall be by this Act incorporated accordingly with perpetual succession and a common seal and with power to hold and dispose of lands without any licence in mortmain.

Name and incorporation of Joint Committee.

7.—(1) The Joint Committee shall consist of three of the directors of the District Company and three of the directors of the London Company to be respectively nominated in writing under the respective common seals of the District Company and of the London Company.

Constitution and appointment and proceedings of Joint Committee.

(2) Each of the Two Companies respectively may from time to time at its pleasure by writing under its common seal remove all or any of the members of the Joint Committee nominated by it as aforesaid and may from time to time in like manner fill up any vacancies occurring among its representatives on the Joint Committee by removal death disqualification or resignation and any informality in the nomination of a member of the Joint Committee shall not invalidate any acts done by the Joint Committee previously to the discovery of such informality and the omission of either Company to fill vacancies in the Joint Committee shall not invalidate the acts of the Joint Committee.

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(3) The Joint Committee shall hold its meetings at such places and times as it may from time to time determine and two members shall be a quorum provided that each Company is represented Any member of the Joint Committee may and the secretary of the Joint Committee on the requisition of any member shall at any time convene a meeting of the Joint Committee.

(4) The standing arbitrator may at any time on the written application of any member of the Joint Committee who shall state the purpose for which he requires the meeting to be convened convene a special meeting of the Joint Committee giving to each member thereof not less than seven days' notice of such meeting and of the general nature of the business to be transacted thereat and for the purpose of any such special meeting the standing arbitrator may decide that the members present thereat constitute a quorum although one of the Two Companies is not represented thereat.

(5) Unless at any meeting of the Joint Committee it shall be otherwise unanimously agreed for that meeting the chairman of the Joint Committee shall be elected alternately at one meeting from the members representing the District Company and at the next meeting from the members representing the London Company.

(6) Questions arising at any meeting of the Joint Committee shall be decided by a majority of votes and each member present shall have one vote and the chairman shall not have a casting vote Provided that if on any question the member or all members present representing one of the Two Companies shall vote on one side and the member or all members present representing the other of the Two Companies shall vote on the other side such question shall be deemed not to be decided but a difference with regard thereto shall be deemed to have arisen which shall be referred to and decided by the standing arbitrator.

(7) The Joint Committee shall have power from time to time to appoint employ remove and remunerate a secretary and such officers clerks and servants as may be necessary for the conduct of the business of the Joint Committee.

(8) The remuneration (if any) of the Joint Committee shall from time to time be fixed by the Two Companies and shall

be paid by and form part of the expenses of the Joint Committee
Such remuneration shall be divided between the members of the
Joint Committee in such proportions as they shall from time to
time agree or failing agreement equally. A.D. 1911.

8.—(1) The Joint Committee shall from time to time appoint
some person as standing arbitrator and if at any time there shall
be no standing arbitrator for a period of one month the Board of
Trade may on the application of either of the Two Companies
appoint some person as standing arbitrator. Standing arbitrator.

(2) Every person so appointed shall hold office for the period
of one year from the date of his appointment unless he is
previously removed by the Joint Committee or dies resigns or
becomes otherwise incapable of acting.

(3) The Joint Committee or the Board of Trade as the case
may be may fix the remuneration to be paid to the standing
arbitrator and such remuneration shall be paid by and shall form
part of the expenses of the Joint Committee.

(4) Any difference arising at any meeting of the Joint
Committee between the member or members present thereat
representing the District Company on the one hand and the
member or members present thereat representing the London
Company on the other hand shall be referred to and decided by the
standing arbitrator who shall have regard to all the circumstances
of the case and when necessary to the amount of electrical energy
taken by or supplied to the District Company and the London
Company respectively from the generating station undertaking.

(5) The standing arbitrator may on application made to him
by the Joint Committee or by all the members thereof representing
one of the Two Companies attend at any meeting of the Joint
Committee and summarily decide any such difference arising at
such meeting.

(6) Every award or decision of the standing arbitrator upon
any matter upon which a difference shall arise shall be in writing
and shall be final with respect to such matter whether such award
be made or given summarily at any meeting or otherwise.

9.—(1) Subject to such approvals as are provided for in the
section of this Act of which the marginal note is "Consents
required to sale and lease of generating station undertaking"
the Underground Company may sell and transfer to the Joint
Under-ground com-
pany may
sell and
Joint Com-
mittee may

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purchase
generating
station
undertaking.

Committee and the Joint Committee may purchase and take over from the Underground Company the generating station undertaking and the interest of the Underground Company and of all persons (if any) claiming through that company in the depreciation fund upon such terms and conditions and for such price or consideration to be paid or satisfied in cash or power house stock of the net proceeds of the sale thereof or partly in one and partly in the other as may be agreed upon between the Underground Company and the Joint Committee.

(2) After such approvals have been given the Underground Company and the Joint Committee may by a certificate in writing under their respective common seals fix a date as on which the said sale and purchase shall take effect and the date to be so fixed is in this Act referred to as "the date of transfer" Such certificate shall also state the terms and conditions of the said purchase and the amount of the said purchase price or consideration so agreed upon and how the same is to be paid or satisfied.

Vesting of
generating
station
undertaking.

10.—(1) Subject to such approvals as aforesaid having been given the generating station undertaking and all the estate and interest of the Companies or any of them and of all persons (if any) claiming through them or any of them and of the trustees for the time being of the depreciation fund in the depreciation fund shall on payment or satisfaction of the purchase price or consideration agreed upon therefor as aforesaid be by virtue of this Act transferred to and vested in the Joint Committee as on and from the date of transfer and the trustees of the depreciation fund shall as on and from the same date stand and be discharged from the trusts of and relating to such fund and from all reckonings claims and demands with regard thereto and shall deal therewith in such manner as the Joint Committee shall direct and the Underground Company shall as on the date of transfer deliver possession of the generating station undertaking to the Joint Committee or to the Two Companies by its direction.

(2) The generating station undertaking and the depreciation fund shall upon the same becoming transferred to and vested in the Joint Committee as aforesaid be held by and vested in the Joint Committee for all such estates and interests therein as the Companies or any of them or any other person claiming through or under them or any of them had immediately before the date of transfer and freed and discharged from any incumbrances thereon by way of mortgage or charge created by the Underground

Company and subsisting on the date of transfer and also from A.D. 1911.
all such contracts and agreements entered into in connection
with the working of or the supply of electrical energy from the
generating station undertaking and existing on the date of
transfer as are by this Act cancelled and determined and as
regards the depreciation fund freed and discharged from the
trusts thereof but as regards all the said premises subject to the
obligations imposed on the District Company by sections 6 15
and 16 of the Act of 1900 and sections 18 and 19 of the Act
of 1902 or in respect of any easement or other rights acquired
from the Conservators of the River Thames or the Port of London
Authority under the powers of those Acts and (except in so far
as otherwise agreed between the Underground Company and the
Joint Committee) to all other contracts obligations and liabilities
of the Underground Company in connection with the generating
station undertaking and to the obligation by this Act imposed
upon the Joint Committee of granting a lease of the generating
station undertaking to the Two Companies.

(3) Upon the said transfer and vesting of the generating
station undertaking and the depreciation fund taking effect all
mortgages charges and other incumbrances upon (1) the generating
station undertaking (2) any then subsisting agreement for the
supply of electrical energy from the said undertaking and (3)
the depreciation fund or any of them or any part thereof
respectively created by the Underground Company and existing
on the date of transfer shall as on the date of transfer be by
virtue of this Act transferred and attach to the said purchase
price or consideration payable by the Joint Committee without
prejudice to the then existing rights and priorities of such
mortgages charges and other incumbrances amongst themselves
as though such purchase price or consideration had been originally
included in such mortgages charges or other incumbrances in
the place of the said generating station Provided that the
receipt of the Underground Company for the said purchase price
or consideration shall effectually discharge the Joint Committee
therefrom and from being bound to see to the application or
being answerable for the loss or misapplication thereof and the
Joint Committee shall pay and apply the said purchase price or
consideration to such persons and in such manner as the Under-
ground Company and the trustees for the bondholders of the
Underground Company and the trustees for the debenture holders
of the Underground Company shall jointly direct.

A.D. 1911.

(4) The production of the before-mentioned certificate under the common seals of the Underground Company and the Joint Committee and of the before-mentioned receipt of the Underground Company for the said purchase price or consideration shall be sufficient evidence for all purposes without further proof that all necessary consents or approvals to the sale and transfer of the generating station undertaking and the interest of the Underground Company and of all persons (if any) claiming through that company in the depreciation fund to and the purchase and taking over of the same by the Joint Committee have been duly given and obtained and that the generating station undertaking and the depreciation fund and all the estate and interest of the Companies or any of them and of all persons (if any) claiming through them and of the trustees for the time being of the depreciation fund therein respectively have become duly transferred to and vested in the Joint Committee as on and from the date of transfer and all persons shall act thereon accordingly.

(5) Except as by this Act or by any future Act expressly authorised the Joint Committee shall not without the previous consent of the Two Companies under their respective common seals and of a meeting of the holders of the power house stock have power at any time to grant demise assign mortgage charge or otherwise deal with or part with the possession of the generating station undertaking.

Joint Com-
mittee to
grant lease
of generating
station
undertaking.

11.—(1) Subject to such approval as is provided for in the section of this Act of which the marginal note is "Consents required to sale and lease of generating station undertaking" the Joint Committee shall forthwith upon the generating station undertaking becoming transferred to and vested in them grant and the Two Companies shall forthwith take as on and from the date of transfer a lease for a term of nine hundred and ninety-nine years of the generating station undertaking to the Two Companies as tenants in common in equal shares in consideration of a rent (for one equal moiety of which each of the Two Companies shall be liable to the Joint Committee) which rent in respect of each half year shall be equal to the sum of—

(a) The dividend payable for the same half year on the power house stock for the time being issued and outstanding;

(b) All payments expenses allowances and outgoings of every description (other than the said dividend) which the Joint Committee may make or for which they may be or become liable in the same half year whether as owners or lessors of the generating station undertaking or in respect of the depreciation fund or otherwise howsoever. A.D. 1911.

(2) The said rent in respect of each half year shall be payable and paid by the Two Companies in equal moieties to the Joint Committee free of all deductions whatsoever except landlords property tax and without any right of set-off by either of the Two Companies against the Joint Committee and shall so far as the same is required to meet the dividend for such half year on the power house stock be payable at least three days before the due date for payment of such half year's dividend and as regards the balance thereof shall be payable within seven days after the accounts of the Joint Committee for such half year are made up and the amount of such balance ascertained.

(3) One equal moiety of the said rent shall form and be a working expense of the District Company within the meaning of section 4 of the Railway Companies Act 1867 and the other equal moiety of the said rent shall form and be a like working expense of the London Company and such respective moieties of the said rent shall accordingly be payable and paid out of the revenues of the Two Companies respectively in priority to the interest on the present or future debentures and debenture stocks of those Companies respectively but the moiety of the said rent which is payable out of the revenues of the District Company shall not prejudice or affect the rights attached to the existing rentcharge stocks of the District Company or the rights attached by Part III. of the Act of 1908 to the respective debenture stocks of the District Company in respect of rents and profits and proceeds of sale of surplus lands and premises of the District Company nor shall the moiety of the said rent which is payable out of the revenues of the London Company prejudice or affect the rights attached to the existing rentcharges of the London Company.

(4) The said lease shall contain provisions or covenants similar to the provisions contained in the preceding subsections of this section and also covenants and provisions to the effect

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A.D. 1911. set out in the First Schedule to this Act and such other covenants terms and provisions (if any) as shall be agreed upon between the Joint Committee and the Two Companies or as failing agreement shall be settled by a counsel to be agreed upon by the Joint Committee and the Two Companies or failing agreement to be appointed at the request of the Joint Committee or either of the Two Companies by the Board of Trade.

(5) Upon the granting of the said lease the Joint Committee shall deliver to the Two Companies possession of the generating station undertaking.

(6) After the said lease shall have been granted the same shall not be varied surrendered or determined without the previous sanction of a resolution passed at a meeting specially convened for the purpose of the holders of the power house stock by a majority consisting of the holders of not less than three fourths in value of the power house stock represented at such meeting.

(7) Upon the generating station undertaking becoming transferred to and vested in the Joint Committee the Two Companies shall as from the date of transfer be bound to perform and discharge and to indemnify the Joint Committee and the Underground Company respectively against all contracts obligations or liabilities of the District Company and the Underground Company in connection with the generating station undertaking subject to which the generating station undertaking under the provisions of this Act becomes transferred to and vested in the Joint Committee.

Cesser of
Under-
ground Com-
pany's obli-
gation to
supply elec-
trical energy.

12. As on and from the date of transfer all then existing agreements under which the Underground Company is liable to supply electrical energy to the Two Companies or either of them shall by virtue of this Act be cancelled and determined but without prejudice to any claims existing thereunder at the date of transfer.

Generating
station
undertaking
when leased
to form part
of under-
takings of
Two Com-
panies.

13. During the continuance of the term of the said lease of the generating station undertaking the respective estates and interests of the District Company and of the London Company thereunder in the premises thereby demised shall (subject to the provisions of this Act) form part of the respective undertakings of the District Company and the London Company.

14. As from the date of transfer and during the continuance of the term of the said lease the Two Companies may under and subject to the terms of the said lease—

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 Two Companies to work generating station undertaking.

- (i) Exercise all the rights powers privileges and authorities appertaining or belonging to or enjoyed claimed or exercised by the Companies or any of them under any existing Act in connection with and relating to the generating station undertaking (including the rights conferred upon the District Company by sections 6 15 and 16 of the Act of 1900 and by sections 18 and 19 of the Act of 1902) or the generation transmission distribution or supply of electrical energy thereon or therefrom as fully and effectually in all respects as the Companies or any of them might have exercised the same if this Act had not been passed :
- (ii) Maintain repair renew work and manage the generating station undertaking and generate thereat and take or supply therefrom any electrical energy required for their respective undertakings or for any purpose ancillary or incidental thereto including such supply of electrical energy to any other company or person as the Two Companies or either of them are respectively from time to time authorised to afford and may enter into any agreements with any such other company or person with regard thereto.

15. As from the date of transfer and during the continuance of the term of the said lease—

Two Companies to take electrical energy from generating station.

- (1) Each of the Two Companies shall at all times use electrical energy as the motive power for the working of its railways and traffic and take from the generating station undertaking all electrical energy used or supplied by that Company except that used for emergency lighting of stations :
- (2) Neither of the Two Companies shall have any prior right over the other to be supplied with electrical energy from the generating station undertaking :
- (3) The exercise by the London Company of the powers granted by the section of the London Electric Railway Act 1911 of which the marginal note is "Power to

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“ Company and other companies as to supply &c. of
“ electrical energy ” shall be subject to the terms of
any such agreements to be entered into between the
Two Companies as are referred to in subsection (3)
of the section of this Act the marginal note of which
is “ Power to supply electrical energy. ”

Two Com-
panies may
enter into
agreements.

16.—(1) The District Company and the London Company
may from time to time in contemplation of or after the granting
of the said lease enter into and carry into effect and rescind
agreements with respect to the following purposes or matters or
any of them (that is to say):—

(a) The maintenance repair renewal insurance working and
management of the generating station undertaking or
any part thereof or any transformer sub-stations cables
wires or other subsidiary works of any description now
or hereafter used or operated in connection therewith
and the supply of electrical energy from the generating
station undertaking and the payments (if any) to be
made therefor:

(b) The proportion in which as between the Two Companies
the rent payable under the said lease and the expenses
of and in relation to the generating station undertaking
and any such subsidiary works as aforesaid are to be
borne and the revenues thereof (if any) are to be
applied or divided:

(c) The provision of working capital and other moneys
required for the generating station undertaking and
such subsidiary works as aforesaid and of one or more
funds to meet depreciation or obsolescence in and
repairs and renewals thereof and the contributions to
be made by each of the Two Companies in respect
thereof:

(d) The appointment of a joint working committee for
carrying out all or any of the above-mentioned objects
and any purposes incidental thereto.

(2) From and after the date of transfer and subject to the
terms of or in default of any agreement which may be from time
to time entered into between the Two Companies in relation
thereto the rent payable under the said lease and the expenses

of the generating station undertaking in respect of each half year shall be paid and provided in the first instance by the Two Companies in equal moieties but shall (as between the Two Companies) ultimately be borne by them respectively in proportion to the amount of electrical energy taken by or supplied to them respectively from the generating station undertaking during such half year and at the end of each half year all necessary adjusting payments for the purpose shall be made between the Two Companies.

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(3) Provided always that the provisions of this section shall not nor shall any agreement entered into between the Two Companies affect in any way the rights of the Joint Committee but as between the Joint Committee and the Two Companies the rent reserved by the said lease shall be payable by the Two Companies in equal moieties as hereinbefore provided.

17.—(1) Subject to the section of this Act the marginal note of which is "Consents required to sale and lease of generating station undertaking" the Joint Committee may by virtue of this Act and without further or other sanction or authority create and issue a stock (to be called "Metropolitan District and London Electric Railways joint power house rent-charge stock" and in this Act referred to as "power house stock") to such an amount as may be requisite to provide for the purchase of the generating station undertaking and for the other purposes mentioned in the section of this Act the marginal note of which is "Application of moneys raised by Joint Committee."

Power to
 Joint Com-
 mittee to
 create and
 issue stock.

(2) Such stock shall have attached thereto a fixed perpetual dividend calculated to and payable on each 1st January and 1st July at such rate not exceeding the rate of four per centum per annum as the Joint Committee may at or before the issue thereof determine and such fixed perpetual dividend shall be a first charge upon the rent payable by the Two Companies respectively to the Joint Committee under the said lease and on any other revenues of the Joint Committee. Provided that the said stock shall not constitute the holders thereof members of the Joint Committee or of the Two Companies or either of them nor confer upon them any rights of being present or voting at meetings of the Joint Committee or of either of the Two Companies.

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A.D. 1911. (3) Such stock may be created and issued as a whole or in instalments but the holders of such stock shall not as between themselves be entitled to any preference or priority.

(4) No power house stock shall be issued to provide for any of the matters or purposes mentioned in subsection (5) of the section of this Act the marginal note of which is "Application of moneys raised by Joint Committee" unless such issue shall previously have been sanctioned by a resolution passed at a meeting (specially convened for the purpose) of the holders of the power house stock then already issued by a majority consisting of the holders of not less than three fourths in value of the power house stock represented at the meeting.

(5) The Two Companies may for and on behalf of the Joint Committee pay the half-yearly dividends on the power house stock to the stockholders and all payments so made shall be deemed to be a satisfaction pro tanto of the rent to be reserved under the said lease.

(6) If and whenever the said fixed perpetual dividend on the power house stock shall be more than one month in arrear any one or more of the holders of such stock holding individually or collectively not less than ten thousand pounds of such stock may require and obtain the appointment of a receiver of the rent payable under the said lease and of any other revenues of the Joint Committee and such receiver shall have power to recover and receive the said rent and any other revenues of the Joint Committee and to enforce the covenants and provisions of the said lease And with respect to the appointment powers and duties of any such receiver the provisions of section 26 of the Companies Clauses Act 1863 (as modified or amended by subsequent Acts) are incorporated herewith and for the purposes of this Part of this Act shall be read as if the Joint Committee were named therein in place of the company and the power house stock and the said fixed perpetual dividend thereon were referred to therein in place of debenture stock and the interest thereon Provided that the power house stock shall not confer upon the holders thereof any right to bring any action or suit against the Joint Committee to recover any arrears of the fixed perpetual dividend payable thereon except to the extent to which rent under the said lease and any other revenues of the Joint Committee applicable to the payment of such dividend shall for the time being be in the hands of the Joint Committee.

18. The Joint Committee may dispose of any portion of the power house stock at such time to such persons at such price (whether at a discount or price below the nominal amount thereof or at par or at a premium) and on such terms and conditions and in such manner as the Joint Committee think advisable and (as regards any portion of the said stock issuable in and towards satisfaction of the purchase price or consideration payable by the Joint Committee for the purchase of the generating station undertaking and the interest of the Underground Company and of all persons (if any) claiming under it in the depreciation fund or any other sum in or towards payment of which the moneys so to be raised by the issue of the power house stock are hereinafter authorised to be applied) the Joint Committee may sell the same or agree that the same shall be accepted in satisfaction of a sum equal to greater than or less than the nominal amount of the power house stock so issuable as the Joint Committee may think advisable.

A.D. 1911.
 As to disposal of stock.

19. The Joint Committee may issue certificates to bearer in respect of fully paid up power house stock and with respect thereto the provisions of sections 21 22 23 24 31 and 32 of the Act of 1908 are mutatis mutandis incorporated herewith and shall for the purposes of this Part of this Act be read as if the name of the Joint Committee were inserted therein in the place of the name of the District Company and the power house stock were therein referred to in the place of the stocks and debenture stocks of the District Company therein mentioned And the provisions of section 30 of the Act of 1908 are for the purpose of all meetings of the holders of the power house stock. (whether convened for the purposes mentioned in the said section or for any other purpose) mutatis mutandis also incorporated herewith.

Bearer certificates Application of sections of Act of 1908.

20.—(1) The Joint Committee may convene meetings of the holders of the power house stock if and whenever they think fit and the clauses and provisions of the Companies Clauses Consolidation Act 1845 (as modified or amended by subsequent Acts and as hereby varied) with respect to general meetings of the company and the exercise of the right of voting by the shareholders (so far as relating to the notices to be given of and the proceedings and the business to be transacted at extraordinary meetings of a company convened by the directors thereof) are

Meetings of holders of power house stock.

A.D. 1911. — incorporated with this Act and shall mutatis mutandis apply to meetings of the holders of the power house stock convened under any provision of this Act and such provisions shall in particular for the purposes of this Part of this Act be read as if all references therein to the company or the directors of the company were references to the Joint Committee or the members thereof (as the case may require).

(2) At any meeting of the holders of the power house stock the stockholders present in person or by proxy shall have one vote for each complete ten pounds of power house stock held by them respectively and stockholders so present in person or by proxy and holding or representing between them one hundredth part of the power house stock for the time being issued shall constitute a quorum.

Application
of moneys
raised by
Joint Com-
mittee.

21. The moneys to be raised by the Joint Committee under this Act by the issue of the power house stock shall be applied for the purposes and in the order following (that is to say):—

(1) In paying (or repaying to the Two Companies or either of them if paid by them) such part of the costs charges and expenses of and incidental to the preparation obtaining and passing of this Act as is properly attributable to this Part of this Act and all costs charges and expenses of and incidental to carrying this Part of this Act into effect or otherwise in relation thereto including all capital stamp and other duties (if any) payable in connection with the creation and issue of the power house stock :

(2) In paying the purchase price or consideration agreed upon for the generating station undertaking and the interest of the Underground Company and of all persons (if any) claiming through it in the depreciation fund :

(3) In paying the costs charges and expenses of and incidental to the carrying out of the sale purchase and transfer of the generating station undertaking and the depreciation fund and the granting of the said lease including all stamp and other duties (if any) payable in respect thereof respectively :

(4) In paying over to the Two Companies jointly on the granting of the said lease as working capital for the

generating station undertaking a sum of not exceeding A.D. 1911.
 twenty-five thousand pounds : —

- (5) In paying for any enlargements or extensions of or additions to the generating station undertaking effected after the date of transfer either by the Joint Committee at the request of the Two Companies or by the Two Companies with the consent and at the charge of the Joint Committee provided that such enlargements extensions or additions are in the nature of buildings or fixed plant or fixed machinery or high tension cables and will upon the completion thereof be comprised in the said lease to be granted by the Joint Committee to the Two Companies as aforesaid.

22.—(1) No sale by the Underground Company to the Joint Committee and no purchase by the Joint Committee from the Underground Company of the generating station undertaking and the interest of the Underground Company and of all persons (if any) claiming through it in the depreciation fund and no lease of the generating station undertaking by the Joint Committee to the Two Companies shall take effect nor shall any of the power house stock be created or issued unless and until the purchase price or consideration to be paid by the Joint Committee to the Underground Company and the other terms and conditions of such sale and purchase and the terms and conditions of the said lease to be granted as aforesaid shall have been approved by—

Consents
 required to
 sale and
 lease of
 generating
 station
 undertaking.

- (a) A general meeting of the District Company ;
- (b) A general meeting of the London Company ;
- (c) A general meeting of the Underground Company ;
- (d) The trustees for the bondholders of the Underground Company ;
- (e) The trustees for the debenture holders of the Underground Company.

(2) Each such general meeting of the District Company and the London Company shall be convened and held in like manner as an extraordinary general meeting of the District Company or of the London Company as the case may be and such general meeting of the Underground Company shall be convened in the manner provided by the articles of association of the Underground Company and the notice convening each such meeting shall state

A.D. 1911. generally the object thereof and such approval shall not be deemed to have been given at any such meeting unless by the votes given in person or by proxy of the holders of not less than three fourths in value of the amount of stock or shares (as the case may be) entitled to vote represented at such meeting.

Power to
 supply elec-
 trical energy.

23.—(1) The Two Companies or either of them on the one hand and—

(a) The London United Tramways Limited;

(b) The Metropolitan Railway Company;

The London and South Western Railway Company;

The Whitechapel and Bow Railway Company;

The London Tilbury and Southend Railway Company;

The Wimbledon and Sutton Railway Company;

The Great Western and Metropolitan Railway Companies (for the purposes prescribed by section 38 of the Act of 1910);

The Edgware and Hampstead Railway Company;

The Watford and Edgware Railway Company;

The Great Northern Railway Company;

The Central London Railway Company;

The City and South London Railway Company;

The Great Northern and City Railway Company;

(c) The London and North Western Railway Company;

The North London Railway Company;

And any other company owning or working railways or any company or person owning or working tramways over which railways or tramways or any part thereof and the railways of the Two Companies or either of them or any part thereof through traffic is now carried or is authorised to be carried or with which the Two Companies or either of them now have or are now authorised to form or construct a physical connexion interchange station or exchange passage or subway or whose railways or tramways the Two Companies or either of them are now empowered or are under an obligation existing at the thirtieth day of November one thousand nine hundred and ten to furnish with a supply of electrical energy;

or any one or more of such companies or persons mentioned or included in (a) (b) or (c) of this subsection on the other hand may enter into and carry into effect agreements for the supply from the generating station at Lots Road Chelsea of electrical energy for use by any such company or person on any part of the undertaking of any such company or person. Provided that with respect to any company or person not mentioned in (a) and (b) of this subsection such agreement or supply shall be only for traction purposes and for lighting vehicles propelled by such traction and that where electrical energy is so supplied for traction purposes such electrical energy may also be used for working lifts and signalling apparatus and for lighting passenger or goods stations (not being stations within the county of London) situate on the railways or tramways of such company or person the traffic on which is worked by electrical energy so supplied but not otherwise:

A.D. 1911.

Provided also that the Two Companies or either of them shall not supply electrical energy for use on any tramway (other than the tramways of the London United Tramways Limited) except with the consent of any undertaker authorised to supply electrical energy to whom the Electric Lighting Act 1882 whether partially or wholly applies within whose area of supply such tramway or part thereof is situate and if in the opinion of the applicant for such consent the consent has been unreasonably refused or withheld such applicant may appeal to the Board of Trade and that Board may if in their opinion such consent has been unreasonably refused or withheld dispense with such consent:

Provided also that nothing in this subsection shall authorise the Two Companies or either of them to supply electrical energy for the purpose of working any railway or tramway unless the company or person owning or working such railway or tramway is authorised by Act of Parliament or by an order confirmed by or having the effect of an Act of Parliament to work such railway or tramway by electrical power.

(2) The Two Companies or either of them may transform supply and transmit electrical energy by means of or through their respective electrical substations railways cable subways cables and other works and may apply their funds and revenues for or in relation to all or any of the purposes of this section.

A.D. 1911.

(3) The exercise by either of the Two Companies independently of the other of any of the rights powers or authorities conferred by this section shall be subject to the terms of any agreements to be entered into between the Two Companies with regard thereto and for the time being subsisting and in force and nothing in this section shall affect or be founded on by the Two Companies or either of them as affecting any agreement in force on the first day of March one thousand nine hundred and ten for the supply of electrical energy to or by any company or person authorised to take or afford a supply by or to any company or person authorised to afford or take a supply during the period within which the agreement is under the provisions thereof to remain in force.

(4) Nothing in this section shall authorise the Two Companies or either of them to open and break up the soil or pavement of any street for the purpose of supplying electrical energy and the Electric Lighting Acts 1882 and 1888 shall not apply to the Two Companies or either of them.

(5) All provisions which are contained in this Act or in any of the Acts of the Two Companies respectively for the protection of the telegraphic lines of the Postmaster General shall extend and apply to any supply or transmission of electrical energy by those Companies respectively under any provision of this Act and any works constructed by the Two Companies respectively for the purposes of such supply and to the exercise by the Two Companies respectively of any of the powers conferred by this Act or by any agreement made under this Act.

(6) All provisions which are contained in the Acts or Orders of any company or person (other than the Two Companies) for the protection of the telegraphic lines of the Postmaster General against the use of electrical power shall extend and apply to the exercise by such company or person of any of the powers conferred by this Act or by any agreement made under this Act Provided that if in the case of any line of railway or tramway the Acts or Orders applicable to the said line do not contain any such provision as aforesaid any such company or person shall not exercise the said powers in relation to such line in such manner as to cause or be likely to cause interference with telegraphic communication by means of any telegraphic line belonging to or used by the Postmaster General.

24. Except with the previous consent in writing of the mayor aldermen and burgesses of the county borough of Croydon (in this section called "the Croydon Corporation") under their corporate seal no electrical energy shall under the powers of this Act be supplied or agreed to be supplied by the Two Companies or either of them for use or to be used upon such of the tramways or light railways mentioned in subsection 8 of section 35 of the Croydon and District Electric Tramways Act 1902 as extended by section 13 of the Croydon and District Electric Tramways (Extensions) Act 1903 as the Croydon Corporation are by that subsection as extended as aforesaid empowered to supply with electrical energy.

A.D. 1911.
 For protection of
 Croydon
 Corporation.

25. Until the generating station undertaking shall have become transferred to and vested in the Joint Committee the Two Companies or either of them may continue to take from the generating station undertaking and the Underground Company may continue to supply therefrom all electrical energy that the Two Companies or either of them may require for the purposes of this Act or any Act under which they or either of them or the Underground Company are or may be authorised to furnish a supply of electrical energy.

Supply of
 electrical
 energy until
 generating
 station
 undertaking
 acquired by
 Joint Com-
 mittee.

PART III.

NEW RAILWAYS.

26. Subject to the provisions of this Act the District Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways and works hereinafter described with all proper junctions sidings approaches ventilating shafts wires cables and electrical and other equipment apparatus machinery works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes.

Power to
 District
 Company to
 make rail-
 ways.

The railways referred to in this section and authorised by this Act are—

Railway No. 1 (1 furlong 8·04 chains or thereabouts in length) wholly in the parish of St. Mary Abbots Kensington in the Royal and metropolitan borough of

[Ch. xxxi.] *Metropolitan District Railway* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

Kensington commencing by a junction with the District Company's Railway at a point thereon 1 yard or thereabouts measured in a northerly direction from the northern side of the bridge known as Lillie Bridge carrying Richmond Road over that railway and terminating by a junction with the District Company's Railway at a point thereon 1 yard or thereabouts measured in a westerly direction from the western side of the bridge carrying Warwick Road over that railway :

Railway No. 2 (3 furlongs or thereabouts in length) commencing in the parish and metropolitan borough of Fulham by a junction with the District Company's Railway at a point thereon 70 yards or thereabouts measured in a westerly direction from the western side of the bridge carrying the District Company's Lillie Bridge sidings over the District Company's Railway and terminating in the parish of St. Mary Abbots Kensington in the Royal and metropolitan borough of Kensington by a junction with the District Company's Railway at a point thereon 1 yard or thereabouts measured in a westerly direction from the western side of the bridge carrying Warwick Road over that railway.

London and
South West-
ern Railway
Company to
run over
Railway
No. 1.

27. So soon as Railway No. 1 by this Act authorised is completed and opened for traffic the London and South Western Railway Company shall if and when they exercise their existing running powers run over and use that railway instead of the portion of the existing line of railway for which it is substituted.

London and
North West-
ern and Mid-
land Railway
Companies to
run over
Railway
No. 2.

28. So soon as Railway No. 2 by this Act authorised is completed and opened for traffic the London and North Western Railway Company and the Midland Railway Company shall run over and use that railway instead of the portion of the existing line of railway for which it is substituted.

For pro-
tection of
Earls Court
Limited.

29. Whereas by an indenture made the twentieth day of October one thousand nine hundred and ten between the District Company of the one part and the Earls Court Limited of the other part the Earls Court Limited being lessees or reputed lessees of the lands and premises described on the deposited plans and in the deposited books of reference as number 2 in the parish of St. Mary Abbots Kensington in the Royal and

metropolitan borough of Kensington in the county of London A.D. 1911.
granted unto the District Company their successors and assigns
the right—

- (a) To construct railways and works in and through such portions of the said lands and premises as are shown hatched with blue lines on the plan entitled Plan No. 4844A signed by Arthur R. Cooper on behalf of the District Company and by W. A. Woodhouse on behalf of the Earls Court Limited and to carry out all works incidental to such railways and works and to equip such railways and works with all electrical and other equipment usual on railways of the District Company:
- (b) To maintain and at all times during the term of the lease dated the twenty-sixth day of October one thousand eight hundred and ninety-eight and made between the District Company of the one part and the London Exhibitions Limited the predecessors in title of the Earls Court Limited of the other part (and being the lease of the said lands and premises to the London Exhibitions Limited and in this section referred to as "the said lease") to run over and work by electrical and/or steam power and use such railways and works with engines carriages trains and waggons:
- (c) To construct maintain and use within the portion of the said lands and premises hatched with yellow lines on the said plan a shaft for ventilating the said railways and works:
- (d) For the purposes of the construction of the said railways and works and shaft and from time to time for the purposes of the maintenance thereof to enter upon the lands and premises coloured pink on the said plan and make such excavations execute such works and do such things as may be convenient or necessary for the purpose of executing carrying out or maintaining the said railways and works:

And whereas it was by the said indenture agreed between the District Company and the Earls Court Limited that—

- (i) The railways and works aforesaid should be constructed between the 1st of October 1910 and the 15th April

[Ch. xxxi.] *Metropolitan District Railway* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

1911 and/or at the option of the District Company between the like dates in any subsequent year and when commenced should be carried out with all reasonable despatch :

- (ii) On completion of the said railways and works the District Company should (except as under-mentioned) level the ground and/or the floor of any building to within six feet of its present level and should restore the same as nearly as may be (subject to difference of level) to its present condition but the District Company should not be bound to restore the surface over so much of the said railways and works as lies between the points marked "X" and "Y" on the said plan :
- (iii) All damage to the buildings on the said lands and premises and to the grounds thereof occasioned in the construction of the said railways and works (other than the raising of the level of the ground or of the floor of any building indicated on the said plan) and/or occasioned in any subsequent entry by the District Company on the lands and premises for purposes of the maintenance of the said railways and works should be made good by and at the expense of the District Company such expense not to exceed the actual cost reasonably incurred in so doing :
- (iv) In connection with the above-mentioned railways and works the District Company would use their best endeavours to improve the railway facilities to the premises of the Earls Court Limited :
- (v) The District Company would indemnify the Earls Court Limited their successors and permitted assigns from and against all actions costs claims and demands which might be brought or made against them by any person company or corporation in respect of the construction and maintenance or user of the said railways and works Provided that no new buildings should be erected on the portion of the said lands and premises hatched with blue lines on the said plan without the consent in writing of the District Company :

Be it therefore enacted as follows:—

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The following provisions shall unless otherwise agreed between the District Company and the Earls Court Limited apply and have effect for the protection of the Earls Court Limited as lessees or reputed lessees under the said lease (that is to say):—

- (1) The railways and works by this Act authorised shall be deemed to be the railways and works referred to in the said indenture made the twentieth day of October one thousand nine hundred and ten between the District Company of the one part and the Earls Court Limited of the other part and the provisions of the said indenture set out aforesaid shall apply and have effect in relation to the railways and works by this Act authorised:
- (2) The District Company shall not under the powers of this Act be entitled to enter upon take and use any part of the lands or premises of which the Earls Court Limited are lessees or reputed lessees under the said lease other than the portion which the District Company are entitled to enter upon take and use under the provisions of the said indenture:
- (3) In respect of the entering or taking and use by the District Company of the said portion of the lands and premises of which the Earls Court Limited are lessees or reputed lessees under the said lease for the construction maintenance working or use of the railways and works by this Act authorised the Earls Court Limited or any person claiming through that company shall not be entitled to claim under this Act or any Acts incorporated with this Act any compensation whatsoever in respect of any lands or premises of which the Earls Court Limited are lessees or reputed lessees being entered upon taken or used for the purposes of or injuriously affected by reason of the construction maintenance working and use of the railways and works by this Act authorised Provided that nothing in this subsection contained shall deprive the Earls Court Limited of the right to the execution of any consideration or the performance of any condition secured to or the payment of any

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money reserved to the Earls Court Limited under the provisions of the said indenture:

- (4) The said indenture shall be read and have effect as if the District Company had been authorised to make the railways and works referred to in the said indenture at the date thereof.

For protection of
Royal
borough of
Kensington.

30. For the protection of the mayor aldermen and councillors of the Royal borough of Kensington (in this section called "the council") the following provisions shall (unless otherwise agreed between the District Company and the council) be observed and have effect (that is to say):—

- (1) The provisions contained in subsections 2 5 6 7 8 9 and 10 of section 46 of the Act of 1910 (the marginal note whereof is "For protection of Royal borough of Kensington") are incorporated with this Act and shall extend and apply for the protection of the council to so much of the works by this Act authorised to be constructed in the Royal borough of Kensington by the District Company under the powers of this Act as will necessitate the interference with and breaking up of any public street public road or public footway in that borough:

- (2) If any difference shall arise between the council and the District Company under or in respect of the provisions in this section hereinbefore contained such difference shall be referred to an arbitrator to be agreed upon or failing agreement to be appointed by the Board of Trade on the application of either party and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

For protection of
Metropolitan
Water
Board.

31. For the protection of the Metropolitan Water Board (in this section referred to as "the Board") the following provisions shall (unless otherwise agreed in writing between the Board and the District Company) have effect (that is to say):—

- (1) In constructing Railway No. 1 by this Act authorised the District Company shall not in any way alter or interfere with the water main of the Board suspended across the existing railway of the District Company near to Lillie Bridge:

(2) Not less than one month before commencing the construction of so much of the said Railway No. 1 as is within 50 yards of Lillie Bridge aforesaid the District Company shall deliver to the Board a plan section and specification of that part of the said railway describing the proposed manner of executing the same and showing the whole of the works proposed to be executed within the said distance in connection with the said railway and if the Board shall be of opinion that the construction of the said part of the said railway in the manner proposed would or might cause injury to the said main or interfere with the supply of water by means thereof it shall be lawful for the Board at any time after the receipt of such plan section and specification as aforesaid to execute and do all such works and things as may be reasonably necessary for the protection of the said main and the District Company shall on demand repay to the Board the costs charges and expenses reasonably incurred by them in so doing Provided that before commencing to execute or do any such works or things as aforesaid the Board shall by notice in writing intimate to the District Company the steps they propose to take: A.D. 1911.

(3) If any difference shall arise between the Board and the District Company with respect to any matters under this section or concerning the said plan section and specification the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

32. The following provisions for the protection of the West London Extension Railway Company (hereinafter referred to as "the Extension Company") shall unless otherwise agreed apply and have effect:—

For protection of West London Extension Railway Company.

(1) The District Company shall construct Railway No. 2 by this Act authorised where the same is intended to pass under the lines of railway and property of

A.D. 1911.

the Extension Company by means of a bridge or other works and according to plans sections and specifications to be approved as hereinafter mentioned provided that the upper surface of the flooring and girders of such bridge shall be at a uniform level of one foot six inches at least below the level of the existing rails of the railway of the Extension Company at the said point of crossing. The District Company shall when required by the Extension Company extend the said bridge or other works on both sides thereof for a width sufficient to admit of the Extension Company widening their said lines of railway by the addition thereto of an extra line of rails on the eastern side of those now existing such extension of bridge to be similar in all respects to the one of which it is an extension :

(2) The District Company shall construct such portion of Railway No. 2 as shall be under upon or affect the railways lands or works of the Extension Company as a single line only and in such line within the limits of deviation shown upon the deposited plans as shall be reasonably approved by the principal engineer for the time being of the Extension Company (hereinafter called "the said principal engineer") and so far as practicable to leave undisturbed at all times the lines of railway and other works connected therewith of the Extension Company and so as in no way to obstruct impede or interfere with the free and uninterrupted and safe use of the said railway of the Extension Company or with the traffic thereon and if any such obstruction or interference shall be caused or take place the Company shall pay to the Extension Company full compensation in respect thereof :

(3) The Company shall construct the said portion of Railway No. 2 and all the works both temporary and permanent necessary and incident to the construction thereof or affecting the property and works of the Extension Company in accordance with the provisions of this section and according to plans sections and specifications and of such quality and strength of

materials and in every other respect as shall be previously submitted to and approved in writing by the said principal engineer such temporary works to be constructed so that as far as possible the trains of the Extension Company may pass over the same without the necessity of slackening speed and the Company shall not commence the construction of the said portion of Railway No. 2 or enter upon or interfere with any land works or property belonging to or used by the Extension Company until such plans sections and specifications have been so submitted and approved. Provided always that if the said principal engineer shall for the period of one month neglect or refuse to approve such plans sections and specifications or shall disapprove the same then the said portion of Railway No. 2 and the said works shall be constructed according to plans sections and specifications to be submitted to and approved (subject however to the special provisions of this section) by an arbitrator to be appointed as hereinafter provided:

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- (4) The said portion of Railway No. 2 and all works necessary or incidental to the construction thereof or affecting the property or works of the Extension Company shall be executed in all things at the expense of the District Company and under the superintendence and to the satisfaction of the said principal engineer and the District Company shall execute and complete any portions of such works which the said principal engineer shall deem necessary and expedient before they commence any other portion :
- (5) The said portion of Railway No. 2 and works shall after commencement thereof be proceeded with with all practicable despatch and if in the opinion of the said principal engineer or in case of difference in the opinion of an arbitrator to be appointed as hereinafter provided the District Company shall not be proceeding in the construction and execution of the said portions of Railway No. 2 and works with all such despatch it shall be lawful for the Extension Company without let or hindrance from the District

A.D. 1911.

Company their contractors or servants to enter upon the land and property acquired or occupied by the District Company and to do all acts and things and to take possession of and use all materials or plant necessary for the execution and completion of the said portion of Railway No. 2 and works or so much thereof as the said principal engineer may consider desirable or expedient for the safety of their railway property and works and for preventing or removing any obstruction or interference with the safe or convenient user or occupation thereof in as free and commodious a manner as they might have used or occupied the same if the said portion of railway and works had not been commenced or constructed and the District Company shall on demand repay to the Extension Company all payments costs damages and expenses which they may reasonably incur become liable for or be put to in or about the matters aforesaid :

- (6) The District Company shall at all times keep the said portion of Railway No. 2 properly drained to the reasonable satisfaction of the said principal engineer :
- (7) The District Company shall not (except with the previous consent of the Extension Company under their common seal) purchase or acquire any lands or property of the Extension Company but the District Company may purchase and take and the Extension Company shall sell and grant accordingly an easement or right of using so much of the lands of the Extension Company as may be necessary for the construction of the said portion of Railway No. 2 in accordance with the provisions of this section :
- (8) During the construction of the said portion of Railway No. 2 under upon or affecting the railways property and works of the Extension Company the District Company shall bear and on demand pay to that company all expenses of employment by them of a sufficient number of inspectors or watchmen to be appointed by that company for inspecting the said works or for watching their railways and the works thereof with reference to and during the execution

of the intended works and for preventing as far as A.D. 1911.
may be all interference obstruction danger and accident
which may arise from any of the operations or from
the acts or defaults of the District Company or their
contractors or any person or persons in the employ-
ment of the District Company or their contractors
with reference thereto or otherwise :

- (9) The District Company shall at all times maintain the
said portion of Railway No. 2 and all the works
connected therewith and incidental thereto by which
the said railway shall be carried under across and
adjoining the railways works and lands of the
Extension Company in substantial repair and in good
order to the reasonable satisfaction in all respects of
the principal engineer and if and whenever the
District Company fail so to do the Extension Company
may make and do in and upon as well the lands of
the District Company as their own lands all such
works repairs and things as they may reasonably
think requisite in that behalf and the sum from time
to time certified by the said principal engineer to be
the reasonable amount of such expenditure shall be
repaid to the Extension Company by the District
Company and in default may be recovered by them
from the District Company :
- (10) Notwithstanding anything in this Act contained the
District Company shall be responsible for and make
good to the Extension Company all costs losses
damages and expenses which may be occasioned to
that company or to any of their railways works or
property or to the traffic thereon or otherwise by
reason of the execution or maintenance or by reason
of the failure of the District Company's Railway and
the works in connection therewith or the maintenance
thereof or any act or omission of the District Company
or of their contractors or of any of the persons in
the employ of the District Company or of their
contractors and the District Company will effectually
indemnify and hold harmless the Extension Company
from all claims and demands upon or against them
during or by reason of such execution or maintenance
or failure or such act or omission :

A.D. 1911.

(11) Any dispute or difference arising between the Companies with regard to the foregoing provisions of this section or any of them shall be determined by an arbitrator to be agreed upon between the Companies or failing agreement to be appointed on the application of either Company by the President of the Institution of Civil Engineers in accordance with the provisions of the Arbitration Act 1889:

(12) The District Company and the Extension Company may agree upon any variation or alteration in the works in this section provided for or in the manner in which the same shall be executed.

Deposit
money not
to be repaid
except so
far as rail-
ways are
opened.

33. Whereas pursuant to the standing orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum of four thousand and nineteen pounds two shillings and ninepence two and a half per cent. consolidated stock being equal in value to five per cent. upon the amount of the estimate in respect of the railways by this Act authorised has been deposited with the Paymaster General for and on behalf of the Supreme Court in respect of the application to Parliament for this Act (which sum is referred to in this Act as "the deposit fund") Be it enacted that notwithstanding anything contained in the said Act the deposit fund shall not be paid to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which person survivors or survivor are or is in this Act referred to as "the depositors") unless previously to the expiration of the period limited by this Act for the completion of the railways by this Act authorised the same are opened for the public conveyance of passengers and if default is made in so opening such railways the deposit fund shall be applicable and shall be applied as provided by the next following section. Provided that if within such period as aforesaid any portion of such railways is opened for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of such railways opened as aforesaid and the portion of the deposit fund which bears to the whole of the deposit fund the same proportion as the length of the portion of such railways so opened bears to the entire length of such railways the High Court shall on the application of the depositors order

the portion of the deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding. A.D. 1911.

34. If previously to the expiration of the period limited for the completion of the railways by this Act authorised those railways are not completed and opened for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railways by this Act authorised or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the District Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable, or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the District Company is insolvent or the undertaking has been abandoned be paid to such receiver or be applied in the discretion of the court as part of the assets of the District Company for the benefit of the creditors thereof and subject to such application shall be repaid to the depositors Provided that until the deposit fund has been repaid to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors. Application of deposit fund.

35. If the railways by this Act authorised are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the District Company for making and completing the same or Period for completion of works.

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Act, 1911.

A.D. 1911. otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for compulsory purchase of lands.

36. The powers of the District Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Power to apply funds to purposes of Act.

37. The District Company may apply to the purposes of this Act any moneys which they now have in their hands or which they have power to raise by shares or stock or by mortgage or debenture stock and which may not be required for the purposes for which the same were authorised to be raised or borrowed.

Railways to form part of District Company's undertaking.

38. The railways by this Act authorised shall for all purposes form part of the undertaking of the District Company and the District Company may work the traffic on such railways by electrical power or steam power.

Tolls on railways.

39. For the purposes of calculating the maximum tolls rates fares and charges for the railways by this Act authorised Railway No. 1 by this Act authorised shall be deemed to be part of the railways authorised by the Metropolitan District Railways Act 1864 and Railway No. 2 by this Act authorised shall be deemed to be part of the Hammersmith Extension Railway of the District Company authorised by the Hammersmith Extension Railway Act 1873.

PART IV.

MISCELLANEOUS.

Power to District Company to acquire lands.

40. The District Company may enter upon take use and appropriate compulsorily or by agreement for the purposes of the improvement and enlargement of their stations and works and the erection of buildings and works and any other purpose of this Act and also for the general purposes of their undertaking all or any of the lands which are delineated on the deposited plans and described in the deposited books of reference including in particular the lands hereinafter described and may hold any of the said lands which may have been purchased by the District Company by agreement before the passing of this Act and the

same shall be deemed to be lands acquired under the powers of this Act (that is to say):— A.D. 1911.

In the county of London—

In the parish of St. George Hanover Square in the city and metropolitan borough of Westminster the houses lands and premises known as Nos. 197 199 201 and 203 Victoria Street.

41. And whereas in the construction of the railways and works by this Act authorised or otherwise in the exercise by the District Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the District Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain lands and buildings.

The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the District Company or each or any of them are in this section included in the term “the owner” and the said properties are in this section referred to as “the scheduled properties.”

The provisions of subsections (2) to (7) of section 41 of the Act of 1903 are incorporated with and form part of this section.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

42.—(1) The District Company may provide own work and use to or from any railway station depôt or hotel owned leased worked or used by the District Company road vehicles to be

Power to provide road vehicles.

A.D. 1911. drawn or moved by animal electrical or other mechanical power and may thereon convey passengers and passengers' luggage who or which have been or are to be conveyed over some part of the railways owned worked or used by the District Company either alone or jointly with any other company and the District Company may prescribe the limits of weight or size for passengers' luggage to be conveyed by such road vehicles.

(2) The District Company may make and recover such charges as they think fit in respect of the conveyance of passengers and passengers' luggage by road vehicles as aforesaid and the District Company may apply their funds to the purposes aforesaid or any of them.

(3) Any electrical power used shall be entirely contained in and carried along with such road vehicles in such a manner that no magnetic or other influence is created which is likely to affect telegraphic communication by means of any telegraphs of the Postmaster General.

(4) Provided that the District Company shall not work or use any such road vehicle mentioned in this section (a) within the administrative county of London exclusive of the city of London (except with the consent of the London County Council) elsewhere than to and from their Hammersmith Station by way of Bridge Road from and to and beyond Barnes (b) within the city of London (except with the consent of the Common Council) (c) within the present borough of East Ham (d) within the present borough of West Ham or (e) within the present urban district of Ilford.

Conveyance
of mails by
road
vehicles.

43. With respect to the conveyance of mails by road vehicles the following provisions shall apply (that is to say):—

(1) The Company shall convey by any road vehicle provided worked or used on a regular or periodical service in connection with or in extension of their railway system and habitually moved by mechanical power all such mails (with the officers of the Post Office in charge thereof) as may be tendered by the Postmaster General for conveyance by such vehicle and shall receive and deliver such mails from or to any Post Office or officer of the Post Office on the route of such vehicle:

Provided that the conveyance of mails by every such vehicle shall be subject to the following rules:— A.D. 1911.

(a) If the vehicle is intended to convey passengers only without luggage the Company shall not be bound to convey Post Office parcels;

(b) If the vehicle is intended to convey passengers and their luggage the Company shall not be bound to convey Post Office parcels which in the aggregate exceed the limits of weight or size from time to time prescribed by the Company for the luggage of an ordinary passenger;

(c) Except where the vehicle is in charge of a guard (other than the driver of the vehicle) the Company shall not be bound to convey any mails unless they are in charge of an officer of the Post Office:

(2) The remuneration for any services performed in pursuance of this section shall be such as may be from time to time determined by agreement between the Postmaster General and the Company or in default of agreement by the Railway and Canal Commission and any question to be settled by arbitration under this section shall be determined by the said Commission who in all proceedings relating to any matter of difference referred to them under this section shall have the same powers as if it had been a matter referred to them in pursuance of the Railway and Canal Traffic Acts 1873 and 1888 or any Act amending the same:

(3) The expression "mails" has the same meaning as in the Regulation of Railways Act 1873 and the expression "Post Office parcel" means a parcel as defined by the Post Office (Parcels) Act 1882.

44. The sections of the Acts of 1897 1901 1902 1903 and 1906 which are enumerated and referred to in the Third Schedule to this Act (except so far as the same or any part or parts thereof are expressly repealed amended or varied by this Act) are incorporated with and form part of this Act and shall so far as applicable extend and apply to the railways and works by this Act authorised and to any lands (other

Incorporation of certain sections of Acts of 1897 1901 1902 1903 and 1906.

[Ch. xxxi.] *Metropolitan District Railway* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. than easements beneath the surface) which the District Company acquire under this Act in the manner and to the extent in those sections mentioned as fully and effectually to all intents and purposes as if those sections had been re-enacted mutatis mutandis in this Act:

Provided that any provisions of the said incorporated sections referring to the Company shall be read and have effect as applying to the District Company.

Amendment of section 45 of Act of 1910. **45.** In section 45 (Power to Company to acquire lands) of the Act of 1910 the words "and to extinguish" shall be read and have effect as if the word "may" were substituted for the word "to."

Repeal of certain sections of Baker Street and Waterloo and Charing Cross Euston and Hampstead Railway Acts. **46.** Section 41 of the Baker Street and Waterloo Railway Act 1893 section 17 of the Baker Street and Waterloo Railway Act 1902 and section 23 of the Charing Cross Euston and Hampstead Railway Act 1902 are hereby repealed.

Provision as to general Railway Acts. **47.** Nothing in this Act contained shall exempt the District Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the District Company.

Costs of Act. **48.** All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall in the first instance be paid by the District Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1911.

THE FIRST SCHEDULE.

COVENANTS AND PROVISIONS TO BE CONTAINED IN THE LEASE OF
THE GENERATING STATION UNDERTAKING TO BE GRANTED
PURSUANT TO THE SECTION OF THIS ACT THE MARGINAL
NOTE OF WHICH IS "JOINT COMMITTEE TO GRANT LEASE OF
GENERATING STATION UNDERTAKING."

1. Joint and several covenants on the part of the Two Companies:—

- (A) to pay all rates taxes charges duties impositions assessments and outgoings whether parliamentary parochial or otherwise which are now or may at any time during the term of the lease be assessed charged or imposed upon the demised premises or the owner lessee or occupier in respect thereof:
- (B) to work the generating station undertaking as defined in this Act:
- (C) to keep the generating station undertaking in good working order and condition and whenever and as often as shall be necessary to repair and renew such parts thereof as may from time to time require repairing or renewing:
- (D) to establish and at all times during the term of the said lease maintain in the names of trustees a fund (of which the depreciation fund as defined in this Act shall form part) to provide wholly or partially for depreciation or obsolescence in and repairs and renewals of the generating station undertaking and which fund shall subject to application for such purposes as aforesaid form part of the generating station undertaking:
- (E) to insure and keep insured to their full value such parts of the generating station undertaking as are of a reasonably insurable nature in the joint names of the Joint Committee and the Two Companies.

2. A provision that the Joint Committee shall not have any right or power of re-entry for non-payment of rent or breach of covenant

A.D. 1911. nor shall the Joint Committee have any powers of distress for rent payable in respect of the generating station undertaking.

3. A provision that in the event of any continuing breach by the Two Companies or either of them of any of the covenants of the said lease the Joint Committee shall be entitled to have the performance of such covenants enforced by mandatory injunction against the defaulting Companies or Company.

4. A covenant by the Joint Committee forthwith to make over or procure to be made over to the original trustees of the depreciation fund to be formed under the said lease and as part thereof the depreciation fund as defined by this Act.

THE SECOND SCHEDULE.

DESCRIBING LANDS HOUSES AND MANUFACTORIES OF WHICH PORTIONS ONLY MAY BE TAKEN AND WHICH ARE REFERRED TO IN THE SECTION OF THIS ACT OF WHICH THE MARGINAL NOTE IS "OWNERS MAY BE REQUIRED TO SELL PARTS ONLY OF CERTAIN LANDS AND BUILDINGS."

Parish or other Area.	Numbers on deposited Plans.
RAILWAY No. 1. Parish of St. Mary Abbotts Kensington in the Royal and metropolitan borough of Kensington.	2.
RAILWAY No. 2. Parish and metropolitan borough of Fulham Parish of St. Mary Abbotts Kensington in the Royal and metropolitan borough of Kensington.	3. 2 6 7.
ADDITIONAL LANDS. Parish of St. George Hanover Square in the city and metropolitan borough of Westminster.	1 to 4.

THE THIRD SCHEDULE.

A.D. 1911.

SECTIONS AND PROVISIONS OF THE ACTS OF 1897 1901 1902 1903
AND 1906 WHICH ARE INCORPORATED WITH THIS ACT AND
WHICH ARE REFERRED TO IN THE SECTION OF THIS ACT
OF WHICH THE MARGINAL NOTE IS "INCORPORATION OF
" CERTAIN SECTIONS OF ACTS OF 1897 1901 1902 1903 AND
" 1906."

Marginal Note of Section.	Number of Section.
ACT OF 1897.	
Power to deviate laterally - - - - -	15
Power to deviate vertically - - - - -	16
Walls of buildings to be made good - - - - -	36
As to exhibition of placards within county of London - - - - -	38
Company empowered to underpin or otherwise strengthen houses near railway.	58
Provisions as to use of electric power - - - - -	87
ACT OF 1901.	
For protection of Postmaster General - - - - -	12
ACT OF 1902.	
For protection of sewers of council - - - - -	14
ACT OF 1903.	
Persons under disability may grant easements &c. - - - - -	40
Special accommodation on railways - - - - -	57
ACT OF 1906.	
Application of London Building Acts - - - - -	18
Buildings not to be brought beyond general line - - - - -	19
Objects of interest to be at disposal of London County Council - - - - -	22

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